

Asha Devi V/s M/s Ubber Buildtech Pvt. Ltd.& Others.

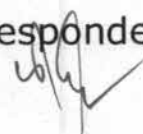
EX/AO/29/2024 in
Complaint No.GC No.1683/2020
TR-AO/0107/2020

Present: Mr. Karan Singh Gill Adv, for complainant/DH.
Mr.Parminder Singh Adv, for respondents/JDs
No.1 to 3.

Order

A complaint (GC No.1683 of 2020/TR-AO/0107/2020) titled as Asha Devi Vs. Ubber Buildtech Pvt. Ltd & Others, was filed before the then Adjudicating Officer (RERA Pb.) under Section 31 of the Real Estate (Regulation & Development) Act 2016 (hereinafter referred to as the Act). This complaint was partly allowed by the said officer vide a common order dated 28.02.2024, in favour of complainant Asha Devi to the effect that she was entitled for compensation in the shape of interest @ 6% p.a, on the amounts paid from 1st April, 2019 till the date of passing of the said order, alongwith compensation of Rs.30,000/- as litigation expenses, to be paid by the respondents within ninety days.

2. Above said order dated 28.02.2024 was passed in the presence of both the parties, including the representative of the respondents and the same has not been set aside by the competent Authority. But the respondents did not make the payment to the complainant, as per the said order. Hence, this execution application filed by decree holder Asha Devi against the respondents/JDs.



3. During the pendency of this execution application, judgment debtors had filed reply/objections to this execution application.

I have heard both the parties on these objections and have gone through the record of this case very carefully with their able assistance.

Perusal of objections shows that judgment debtors have filed these objections, just for the sake of objections. They have simply repeated the contents of their reply filed to the main complaint. They have also tried to challenge the order dated 28.02.2024 through the said objections, as if, this Bench were the Appellate Authority. So, keeping in view all these facts and circumstances, objections raised by JDs stand dismissed and disposed of.

4. Heard. Now question arises as to which is the proper Office/Forum/Authority competent to affect recovery in this case, by way of arrears of the land revenue?. The answer is given in Section 40 (1) of the Act and Rule 24 of the Punjab State Real Estate (Regulation and Development) Rules 2017 (hereinafter referred to as the Rules), which are reproduced as under:-

Sec.40. Recovery of interest or penalty or compensation and enforcement of order, etc.

(1) If a promoter or an allottee or a real estate agent, as the case may be, fails to pay any interest or penalty or compensation imposed on him, by the adjudicating

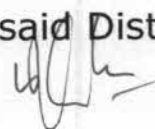


officer or the Regulatory Authority or the Appellate Authority, as the case may be, under this Act or the rules and regulations made thereunder, it shall be recoverable from such promoter or allottee or real estate agent, in such manner as may be prescribed as an arrears of land revenue.

Rule 24. Recovery of interest, penalty and compensation. [Sections 40(1) and 84(2)(r)- The recovery of the amount due such as interest, penalty or compensation shall be recovered as arrears of land revenue in the manner provided under applicable **local laws.**

Local law in Punjab for affecting recovery of amount as arrears of land revenue is the Punjab Land Revenue Act, 1887. Sections 61 to 96 of this Act deal with the "collection of land revenue", whereas Section 67 of this Act specifically deals with the process for recovery of arrears of land revenue.

Perusal of record further shows that offices of the respondents/JDs are situated at District SAS Nagar, (Mohali) Pb. As per provisions of Section 40 (1) of the Act and Rule 24 of the Rules, coupled with the provisions of Punjab Land Revenue Act 1887 and other relevant law/rules, District Collector, SAS Nagar Mohali is competent to affect the recovery in the case in hand, as arrears of land revenue, from the respondents/JDs, as per the said order dated 28.02.2024 passed by the Adjudicating Officer (RERA) Pb. This office has nothing to do, now in this case. So, Recovery Certificate in this case be issued to the said District Collector



alongwith list of property of the respondents, copy of this order, copy of order dated 28.02.2024, alongwith other relevant documents, for doing the needful. Legal Branch is directed to facilitate the issuance of Recovery Certificate in accordance with the provisions of [Section-40 (1) and 84(2)(r)] of the Real Estate (Regulation and Development) Act, 2016 to District Collector-cum-Deputy Commissioner, SAS Nagar, Mohali for realization of the due amount, as the arrears of land revenue, at the earliest. The forwarding letter is required to specify the directions of Hon'ble High Court of Punjab & Haryana in the case of Sunder Krishnan V/s M/s. ATS Estates Pvt. Ltd. Execution/AO/26/2021 in complaint No.TR/AO/52/2019 in GC No.1178/2019, to the effect that the execution has to be decided within 60 days. The directions had been issued on the basis of guidelines of Hon'ble Supreme Court in Civil Appeal Nos.1659-1660 of 2021 (Special Leave to Appeal Nos.7965-7966/2020) and therefore, all efforts have to be made for realization of the due amount by all means. Any amount paid by respondents/JDs, out of the due amount, in the present case, shall find mentioned in the recovery certificate/relevant document. Legal Branch is also directed to get the report of F&A Branch regarding exact due amount to be recovered from the respondents/JDs, if required. Copy of this order alongwith copy of recovery certificate be also



sent to the concerned parties for their information and further necessary action. Since nothing is to be done in this execution application now by this office, so this execution application stands disposed of, accordingly. However, it is made clear that the office of the said District Collector shall send the intimation to this Bench, as and when recovery is affected in this case as per said order dated 28.02.2024. After proper compliance of this order by this office, file be consigned to the record room.

Pronounced
Dated:06.08.2026


(R.S.Rai) 06/8/2026
Adjudicating Officer,
RERA, Punjab.